

Conduct and conflict of interest

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Leaders and senior staff list their business interests publicly.
- If you have a stake in a decision, you leave the room.
- Gifts over \$100 get reported. Gifts from people wanting a contract get refused.
- No using inside information for private deals.
- Staff can refuse an order that breaks the rules, without punishment.

Why this draft is here

A conflict that is written down and public is easy to manage. One that is hidden turns into a problem for everyone, including the person holding it.

1. Purpose and who it covers

- 1.1 This code is the conflict of interest rule and code of conduct for the chief, every councillor, and every employee who can spend money, hire, or give out housing or a program.

2. Disclosure and the register

- 2.1 Within 5 days of taking office or starting the job, the person files a written disclosure with the records officer. It lists their business interests, their employers, board seats, and any contract they or their immediate family have with the First Nation or a business the First Nation owns.
- 2.2 A new interest must be filed within 5 days of the person learning of it.
- 2.3 The records officer posts each disclosure on the public register within 2 days and keeps it for 10 years.
- 2.4 A filing up to 10 days late is posted as late, and the appeal body issues a written warning within 14 days. A filing more than 10 days late stops that person's honorarium or pay until the filing is posted.

3. Leaving the room

- 3.1 The person must leave the room before debate on any matter where they or their immediate family have a financial interest. They must not move, second, or vote. The constitution, Part 5, covers pay, honoraria, travel, and contracts.
- 3.2 A missed recusal suspends the person's honorarium, or authority to spend, for 30 days. The appeal body issues the suspension in writing within 14 days of confirming the miss.

- 3.3 A decision made where a person should have left the room and didn't is void unless the vote would have passed without them and the appeal body confirms that in writing.
- 3.4 A second missed recusal in the same term: the appeal body removes the person from office or employment. Removal takes effect 7 days after the written decision unless a court stays it within those 7 days.

4. Gifts

- 4.1 A gift worth more than \$100, or gifts from one source worth more than \$100 in a year, must be reported within 10 days and posted on the register.
- 4.2 A gift from anyone seeking a contract, a job, or a house must be refused. If it was accepted, it must be handed to the First Nation within 5 days, and the person must stay out of that decision. Not handing it over counts as a missed recusal.

5. Conduct

- 5.1 The person must not use information they got through their office for a private deal. If they do, the appeal body orders repayment of the private gain within 30 days and removes them from that decision. A second finding removes them from office or employment under the 7-day rule above.
- 5.2 The person must not tell staff to break any code in this set. A direction to break a code is void. Staff must refuse it in writing within 2 days and send the refusal to the appeal body.
- 5.3 Staff who refuse must not be disciplined for it. Discipline within 180 days of a refusal is presumed to be reprisal under the whistleblower code unless written reasons are filed with the appeal body within 10 days of the discipline.
- 5.4 The person must treat members, staff, and each other with respect, in meetings and online. The appeal body may issue a written warning for a breach and post it.
- 5.5 This code does not try crimes. Theft, fraud, and threats go to the police. A finding under this code is about office, pay, and repayment only.

6. Changing this code

- 6.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 6.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 6.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 6.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

7. Review and coming into force

- 7.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.

- 7.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 7.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 7.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 7.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.